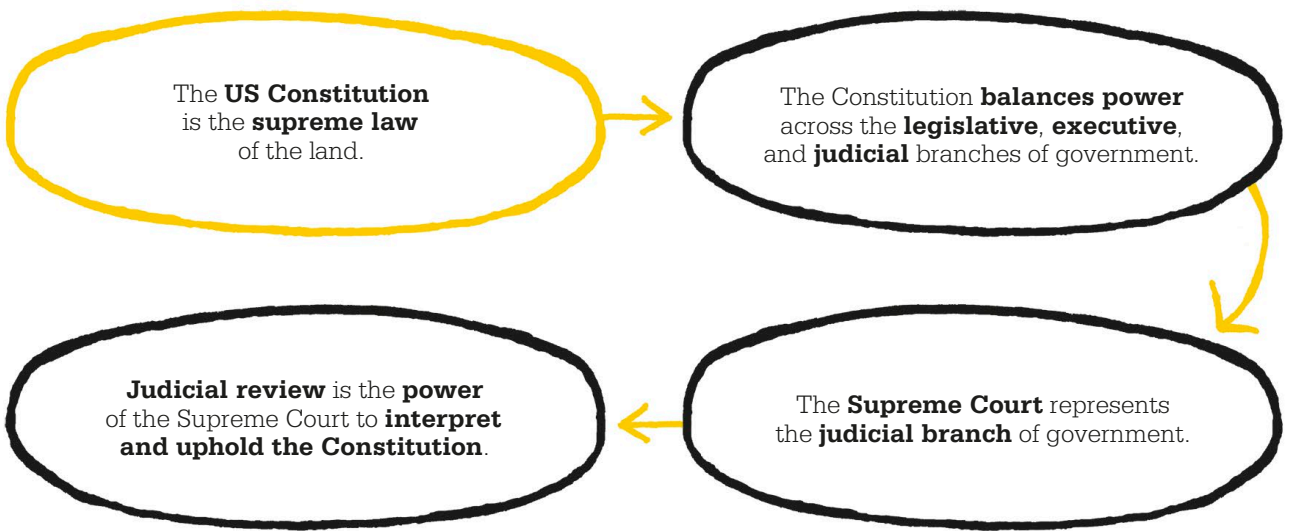




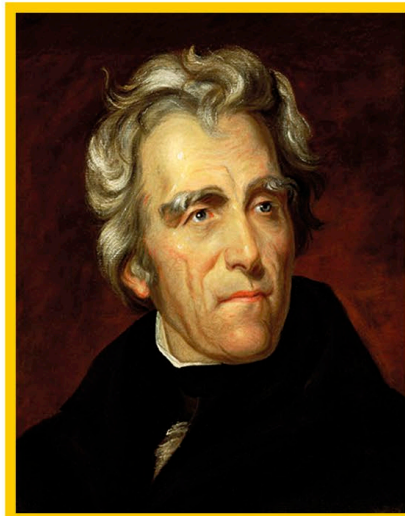
Marshall may be best known for this ruling, but during his tenure as chief justice, he also presided over other important innovations. One example was the shift to an Opinion of the Court presented as a majority decision, in contrast to the former method of seriatim decisions, in which each judge delivered their own separate opinion.

Put to the test

Although *Marbury v. Madison* was the watershed case that established the Supreme Court's power of judicial review, it was just the start of a long process of clarification. During its early years, the Court heard numerous cases that served to define more clearly the parameters of this power. Each ruling gave greater legitimacy to the Supreme Court as arbiter of the Constitution and confirmed the right of the Court to review the constitutionality of laws passed by lower courts and by the legislative branch or the executive branch of government.

However, the principle was not without its opponents. President Andrew Jackson, for example, who

held office from 1829 to 1837, was a proponent of the departmental theory of government, which argued that each branch of government possessed the right to interpret the Constitution. Jackson put a number of cases to the Supreme Court that served to challenge John Marshall's perception of the Court's role. In 1832, he even defied the decision of the Court in *Worcester v. Georgia*, a ruling that laid the foundations for the principle of tribal sovereignty. Jackson circumvented the ruling,



allowing the forced relocation of the Cherokee people from their lands to continue. (This chapter in US history, in which more than 60,000 American Indians were compelled to leave their ancestral lands and walk thousands of miles to designated "Indian territory," is known as the Trail of Tears.)

Judicial review was also put to the test in *Lochner v. New York* (1905). The state of New York had, in 1895, passed the Bakeshop Act, which ruled that bakers, who often worked in poorly ventilated spaces and as a result suffered from lung problems, should not be forced to work more than 10 hours a day or 60 hours a week. Bakery owner Joseph Lochner, after being prosecuted for contravening this law, challenged the Act. The Supreme Court ruled by a majority of 5-4 that the Act was indeed a violation of the due process clause of the Fourteenth Amendment. This clause effectively

President Andrew Jackson famously disregarded the Supreme Court's ruling in *Worcester v. Georgia* (1832). He is said to have declared, "Marshall has made his decision; now let him enforce it!"